

ORDINANCE NO. 26-24

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, UPDATING THE CAPITAL IMPROVEMENT PLAN SCHEDULE IN THE COMPREHENSIVE PLAN OF THE CITY OF DELRAY BEACH FOR FY 2024-25 TO FY 2028-29 IN ACCORDANCE WITH THE REQUIREMENTS OF POLICIES CIE 1.2.1 AND CIE 1.2.6 OF THE CAPITAL IMPROVEMENT ELEMENT; PROVIDING A CONFLICTS CLAUSE; PROVIDING A SEVERABILITY CLAUSE; PROVIDING AN EFFECTIVE DATE; AND FOR OTHER PURPOSES.

WHEREAS, the City of Delray Beach (City) exercised the authority granted pursuant to the provisions of Florida Statutes Sections 163.3161 through 163.3248, inclusive, known as the "Community Planning Act," and adopted the Always Delray Comprehensive Plan (Comprehensive Plan) update via Ordinance No. 19-19; and

WHEREAS, pursuant to Florida Statutes 163.3177(3)(b), the City is required to review the 5-Year Schedule of Capital Improvements in the Capital Improvements Element of the Comprehensive Plan on an annual basis; and

WHEREAS, pursuant to Policies CIE 1.2.1 and 1.2.6 of the Capital Improvement Element of the Comprehensive Plan, the City prepared a Five-Year Comprehensive Improvement Plan (CIP) for the period between FY 2024-25 to FY 2028-29, which addresses currently funded projects, projects under construction, and a five-year projection of projects costing more than \$25,000, and is described in "Table CIE-1- Capital Improvements Plan, Five Year Capital Improvements Schedule for Projects > \$25,000" attached hereto and incorporated herein as Exhibit "A"; and

WHEREAS, pursuant to Policy CIE 1.2.6 of the Capital Improvement Element of the Comprehensive Plan, the Planning and Zoning Board for the City of Delray Beach, sitting as the Local Planning Agency, has the responsibility to annually review the CIP and issue a statement of consistency with the Comprehensive Plan prior to the adoption of the CIP by the City Commission; and

WHEREAS, pursuant to Florida Statutes 163.3174(4)(c), the Planning and Zoning Board for the City of Delray Beach, sitting as the Local Planning Agency, considered this item at a public hearing on August 12, 2024, and voted 5 to 0 to provide a statement of finding that the 5-Year Capital Improvement Plan for FY 2024-25 through FY 2028-29 and the FY 2024-25 Capital Improvement Budget are consistent with the Comprehensive Plan; and

WHEREAS, at its meeting of October 1, 2024, the City Commission of the City of Delray Beach accepted the Planning and Zoning Board's findings and adopted the list of capital improvement projects contained in the 5-Year Capital Improvement Plan for FY 2024-25 to FY 2028-29 and the FY 2024-25

Capital Improvement Budget; and

WHEREAS, at its meeting of October 1, 2024, the City Commission desired to update "Table CIE-1 - Capital Improvements Plan, Five Year Capital Improvements Schedule for Projects > \$25,000" in the Always Delray Comprehensive Plan to reflect the capital projects schedule for the years FY 2024-25 to FY 2028-29; and

WHEREAS, pursuant to Section 163.3177(3)(b), Florida Statutes, modifications to the 5-year capital improvement schedule may be accomplished by ordinance and not be deemed amendments to the Comprehensive Plan; and

WHEREAS, the City Commission of the City of Delray Beach considered the Ordinance and has considered the respective findings as set forth in the Comprehensive Plan and Land Development Regulations; and

WHEREAS, the City held all duly required public hearings in accordance with statutory requirements.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AS FOLLOWS:

Section 1. The recitations set forth above are incorporated herein.

Section 2. The City Commission of the City of Delray Beach finds that Ordinance No. 26-24 is consistent with the Comprehensive Plan, meets the Criteria set forth in the Land Development Regulations, and is in the best interest of the City.

Section 3. The City Commission of the City of Delray Beach, Florida, hereby declares its intent to exercise the authority granted pursuant to the provisions of Florida Statutes Sections 163.3161 through 163.3248, inclusive, known as the "Community Planning Act."

Section 4. That "Table CIE-1 - Capital Improvements Plan, Five Year Capital Improvements Schedule for Projects > \$25,000" which is attached hereto as Exhibit "A" and incorporated by reference herein, is made part of the Capital Improvement Element in the adopted Comprehensive Plan for the City of Delray Beach.

Section 5. All ordinances or parts thereof or parts of the Code conflicting or inconsistent with the provisions of this Ordinance are hereby repealed.

Section 6. Should any section or provision of this Ordinance or any portion thereof, any paragraph, sentence, or word be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder hereof as a whole or part thereof other than the part declared to

ORD. NO. 26-24

be invalid.

Section 7. This Ordinance shall become effective immediately upon adoption.

PASSED AND ADOPTED in regular session on second and final reading on this 18th day of October, 2024.

ATTEST:

Alexis Givings
Alexis Givings, Interim City Clerk

Thomas F. Carney, Jr.
Thomas F. Carney, Jr., Mayor

Approved as to form and legal sufficiency:

Lynn Gehl
Lynn Gehl, City Attorney

First Reading 9/3/2024
Second Reading 10/1/2024



Exhibit A – Ordinance No. 26-24



TABLE CIE – 1 CAPITAL IMPROVEMENTS PLAN

TABLE CIE-1 - CAPITAL IMPROVEMENTS PLAN FIVE YEAR CAPITAL IMPROVEMENTS SCHEDULE FOR PROJECTS > \$25,000					
PROJECT & FUND	FY 2024-2025	FY 2025-2026	FY 2026-2027	FY 2027-2028	FY 2028-2029
SPECIAL PROJECTS FUND					
Tree Planting	273,000	273,000	-	-	-
Contingency	925	-	-	-	-
TOTALS:	273,925	273,000	-	-	-
RECREATION IMPACT FEE FUND					
Park Pavilion Replacement	150,000	150,000	150,000	150,000	150,000
Playground Updates	50,000	50,000	50,000	50,000	50,000
Pine Grove Playground	225,000	-	-	-	-
Leon Weekes Restoration	50,000	50,000	50,000	-	-
Mike Machek Wall	75,000	-	-	-	-
Contingency	235,685	-	-	-	-
Mobile Stage	-	300,000	-	-	-
TOTALS:	785,685	550,000	250,000	200,000	200,000
GAS TAX FUND					
Transfer to General Construction for Sidewalk Projects	407,510	-	-	-	-
Public ROW ADA Improvements	-	500,000	500,000	500,000	500,000
Contingency	-	-	-	-	-
TOTALS:	407,510	500,000	500,000	500,000	500,000
BUILDING FUND					
Building Division Reconfiguration	5,900,000	-	-	-	-
Contingency	1,000,000	-	-	-	-
TOTALS:	6,900,000	-	-	-	-
BEACH RESTORATION FUND					
Full Beach Restoration	18,913,000	250,000	-	-	-
Dune Management	150,000	150,000	150,000	150,000	150,000
Sea Turtle Nest Monitoring	106,090	109,273	112,551	115,927	119,405
Beach Nourishment - Monitoring	102,500	105,575	108,742	112,005	115,365
Blue Flag Beach Award Program	12,000	12,000	12,000	12,000	12,000
Travel & Training	5,300	5,300	5,300	5,300	5,300
Repair & Maintenance (Beach Buckets, Street furniture, etc)	12,700	12,700	12,700	12,700	12,700
Memberships	13,025	13,025	13,025	13,025	13,025
Training & Education Costs	7,000	7,000	7,000	7,000	7,000
TOTALS:	19,321,615	664,873	421,318	427,957	434,795
GENERAL CONSTRUCTION FUND					
CRA - Pompey Park Community Center & Campus Improvements	27,000,000	15,000,000	5,000,000	-	-
CRA - Northwest Neighborhood Improvements	8,160,880	19,839,120	25,000,000	25,000,000	-
CRA - Artists Alley Drainage Improvements	324,000	-	-	-	-
CRA - Crest Theatre Auditorium	500,000	5,000,000	-	-	-
CRA - Merrill Park Shade Structure	150,000	-	-	-	-
CRA - Carver Square Park	340,000	-	-	-	-
TPA - Lindell Boulevard Bike/Pedestrian Improvements	5,000,000	750,000	-	-	-
TPA - Brant Bridge (Lindell Loop) Connector	1,240,053	2,000,000	500,000	-	-
TPA - Barwick Road Bike/Pedestrian Improvements	4,000,000	550,000	-	-	-
TPA - Germantown Road Improvements	6,500,000	2,500,000	-	-	-
FED - Police Technology (Real Time Crime Center)	963,000	-	-	-	-
FLA - Mobile Barrier for Emergency Response	550,000	-	-	-	-
IT Data Center UPS	225,000	-	-	-	-
ERP Replacement - Lease Purchase	4,000,000	-	-	-	-
ERP Replacement - Lease Purchase Debt Service	650,000	-	-	-	-
Transfer to Beach	5,815,657	-	-	-	-
Golf Course Renovation	-	24,900,000	-	-	-
TPA - Barwick Road Bike/Ped Improvements, Lake Ida to L-30	-	-	4,850,000	3,250,000	-
TOTALS:	66,158,590	45,639,120	35,350,000	28,250,000	-
INFRASTRUCTURE SURTAX FUND					
TPA - Brant Bridge (Lindell Loop) Connector	739,947	-	-	-	-
TPA - Barwick Road Bike/Ped Improvements, Lake Ida to L-30	140,000	460,000	-	-	-
Replacement of Fire Station No. 113	3,601,000	-	-	-	-
N. Swinton Avenue Roadway / Utility Improvements	4,365,032	-	-	-	-

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PROJECT & FUND	FY 2024-2025	FY 2025-2026	FY 2026-2027	FY 2027-2028	FY 2028-2029
Swinton/Atlantic Avenue Intersection Improvements	450,000	7,700,000	-	-	-
Main Beach Pavilion Structural Repairs	675,000	-	-	-	-
Lowson Boulevard SFRTA Railroad Crossing	750,000	-	-	-	-
FHWA – Citywide Transportation Safety Action Plan	300,000	200,000	300,000	-	-
Replacement of Beach Master Plan Showers and Fountains	300,000	100,000	-	-	-
SE 36 th Avenue / Gulfstream Boulevard Streetscape Improvements	-	1,500,000	1,250,000	-	-
Roadway Restoration	-	2,500,000	2,500,000	-	-
Contingency or Other Projects	-	-	-	-	-
Debt Payment	3,513,000	-	-	-	-
TOTALS:	15,073,979	12,460,000	4,050,000	-	-
PARKS GO BOND					
Athletic Field Lighting	1,100,000	-	-	-	-
MemH Park Sod	200,000	-	-	-	-
Walking Trail Resurfacing	500,000	-	-	-	-
Pine Grove Enhancements	1,500,000	-	-	-	-
Miller Park Pickleball	1,000,000	-	-	-	-
Public Restroom Renovation	2,000,000	-	-	-	-
Catherine Strong Athletic Complex	-	8,500,000	-	-	-
Hilltopper Stadium Turf	-	1,500,000	-	-	-
TOTALS:	6,300,000	10,000,000	-	-	-
PUBLIC SAFETY GO BOND					
New Police Department Headquarters	3,000,000	19,000,000	50,000,000	14,000,000	13,000,000
Ocean Rescue Locker Room and Storage Improvements	400,000	400,000	-	-	-
TOTALS:	3,400,000	19,400,000	50,000,000	14,000,000	13,000,000
WATER AND SEWER FUND					
Tropic Isle Neighborhood Improvements	3,300,000	1,430,000	4,300,000	6,350,000	1,550,000
Historic Marine Way Seawall, Roadway, and Drainage Improvements	750,000	750,000	-	-	-
N Swinton Ave. Roadway/Utility Improvements	200,000	-	-	-	-
Water Treatment Plant Improvements	1,000,000	1,000,000	1,000,000	1,000,000	1,000,000
SCRWWTP-Gravity Belt Thickener	750,000	-	-	-	-
Replacement of Fluoride & Phosphate Chemical Tanks & 4-Log Project	4,000,000	-	-	-	-
Upgrade to Telemetry System (SCADA)	2,500,000	2,500,000	-	-	-
South Pump Generator Replacement	3,500,000	-	-	-	-
Replacement of Utilities Generators	300,000	300,000	300,000	300,000	-
Water Meter Replacements	100,000	5,000,000	5,000,000	5,000,000	-
Variable Frequency Drives (VFD) for South & North Pump Station	3,500,000	3,500,000	3,500,000	-	-
Reclaimed Water Area 5 & Connecting Services in Area 10 & 14	100,000	1,200,000	-	-	-
Forcemain 50 to SCRWWTP Replacement	4,127,500	2,843,700	-	-	-
WTP Filter Valve Actuator Replacement	340,000	-	-	-	-
Lab Analytical Instrument/ICP-OES	150,000	-	-	-	-
Upgrades to GIS Databases	200,000	-	-	-	-
Pump Station #50 Upgrade	500,000	4,500,000	-	-	-
Abandonment of Lift Station #80	275,000	-	-	-	-
Liftstation Fencing	110,000	110,000	110,000	-	-
Safety Grates for Lift Stations	200,000	200,000	200,000	-	-
Utility Locating & GIS Mapping	100,000	100,000	100,000	-	-
Owens Baker Tank Re-piping	-	2,000,000	-	-	-
Contingency	3,277,240	-	-	-	-
TOTALS:	29,249,740	25,433,700	14,510,000	12,650,000	2,550,000
WATER TREATMENT PLANT					
Membrane Softening Plant	36,000,000	41,500,000	41,000,000	41,000,000	-
Contingency	9,000,000	-	-	-	-
TOTALS:	45,000,000	41,500,000	41,000,000	41,000,000	-
MUNICIPAL GOLF COURSE FUND					
Historic Golf Course Restoration	125,000	-	-	-	-
Contingency	310,408	-	-	-	-
Golf Course Equipment	-	450,000	150,000	150,000	-
DBOC Golf Club Renovation	-	100,000	100,000	100,000	-

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PROJECT & FUND	FY 2024-2025	FY 2025-2026	FY 2026-2027	FY 2027-2028	FY 2028-2029
TOTALS:	435,408	550,000	250,000	250,000	-
LAKEVIEW GOLF COURSE FUND					
Golf Course Equipment	-	100,000	100,000	100,000	-
Clubhouse Renovations	-	50,000	-	-	-
Contingency	143,150	-	50,000	-	-
TOTALS:	143,150	150,000	100,000	100,000	-
STORMWATER UTILITY FUND					
Historic Marine Way Seawall, Roadway and Drainage Improvements	16,075,000	16,075,000	-	-	-
Thomas Street Pump Station Rebuild	7,000,000	4,750,000	-	-	-
Tropic Isle Neighborhood Improvements	7,700,000	3,570,000	8,100,000	15,400,000	3,500,000
Lakeview Drive Drainage Improvements	550,000	-	-	-	-
Replacement of Seawalls	2,000,000	2,000,000	2,000,000	2,000,000	2,000,000
Carry Forward Towards Future Projects	20,825,000	-	-	-	-
TOTALS:	54,150,000	26,395,000	10,100,000	17,400,000	5,500,000
CEMETERY FUND					
Contingency	88,281	-	-	-	-
TOTALS:	88,281	-	-	-	-
CITY GARAGE					
Vehicle & Equipment Replacements	3,986,706	-	-	-	-
Debt Payment	1,800,000	-	-	-	-
TOTALS:	5,786,706	-	-	-	-
CIP 5 YEAR TOTAL	253,474,589	183,515,693	156,531,318	114,777,957	22,184,795